

CV-24-000245 CUMIS INSURANCE SOCIETY INC vs EDMONSONESCOLAR, DEBRA – Defendant’s Motion to Set Aside Default and Default Judgment – DENIED, without prejudice.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: The Court finds that Defendant’s motion does not comply with the requirements of Code of Civil Procedure section 473. Notably, (1) the motion is not brought within 6 months of the entry of default against Defendant; (2) Defendant does not allege any mistake, surprise, inadvertence or excusable neglect; and (3) is not supported by Defendant’s Proposed Answer. As to the application of Code of Civil Procedure section 473.5, the motion is timely brought based on Defendant’s declaration as to when she received actual notice of this action, though not within a reasonable time. In addition, Defendant’s declaration does not attest to said lack of actual notice not being caused by Defendant’s inexcusable neglect. Also, the motion is not supported by Defendant’s required Proposed Answer. Accordingly, Defendant’s Motion is hereby denied without prejudice.

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As to the application of Code of Civil Procedure section 473.5, the motion is timely brought based on Defendant’s declaration as to when she received actual notice of this action, though not within a reasonable time. In addition, Defendant’s declaration does not attest to said lack of actual notice not being caused by Defendant’s inexcusable neglect. Also, the motion is not supported by Defendant’s required Proposed Answer.

Accordingly, Defendant’s Motion is hereby denied without prejudice.